IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No. 04
CA(CAA)-42(ND)/2023

IN THE MATTER OF:
Shubhram Hospital Solutions Pvt.Ltd. and P Adamnabh Trading Pvt. Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order Pronounced on 12.07.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

Order pronounced in open court vide separate sheets. CA(CAA)-42(ND)/2023 is **allowed.**

Sd/-

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
COURT NO. III, NEW DELHI

CA (CAA)- 42/(ND)/2023

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

In the matter of Scheme of Amalgamation of

PADAMNABH TRADING PRIVATE LIMITED

(Applicant Company-1 /Transferor Company)

AND

VARDHAMAN FABRICS PRIVATE LIMITED

(Applicant Company-2/Transferor Company)

WITH

SHUBHRAM HOSPITAL SOLUTIONS

(Applicant Company-3/Transferee Company)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

CORAM:

SH. BACHU VENKAT BALRAM DAS, HON'BLE MEMBER (JUDICIAL)

SH. ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

1. M/S PADAMNABH TRADING PRIVATE LIMITED

Company registered under the Companies Act, 1956 having its Registered Office at**:**
G-21 & G-22, Plot No.3,
Ground Floor, Community Center,
Aggarwal Plaza, Prashant Vihar,
Sec-14, Rohini North West Delhi-110085

...Transferor Company-1/Applicant Company-1

AND

2. M/S VARDHAMAN FABRICS PRIVATE LIMITED

Company registered under the Companies Act, 1956 having its Registered Office at**:**
G-21 & G-22, Plot No.3,
Ground Floor, Community Center,
Aggarwal Plaza, Prashant Vihar,
Sec-14, Rohini North West Delhi-110085

...Transferor Company-2/Applicant Company-2

WITH

3. M/S SHUBHRAM HOSPITAL SOLUTIONS LIMITED

Company registered under the Companies Act, 1956 having its Registered Office at**:**
G-21 & G-22, Plot No.3,
Ground Floor, Community Center,
Aggarwal Plaza, Prashant Vihar,
Sec-14, Rohini North West Delhi-110085

...Transferee Company-3/Applicant Company-3

Order Delivered on: 12.07.2023

For the Applicant: Mr. Saurabh Kalia, Mr. Sarvik Singhai, Advocates

For the Respondent:

O R D E R

Per- ATUL CHATURVEDI, MEMBER, (TECHNICAL)

1. This application (CA (CAA)-42(ND)/2023) has been jointly filed by the applicant companies herein, Padamnabh Private Limited ("Transferor Company-1") and Vardhaman Fabric Private Limited ("Transferor Company-2") with Shubhram Hospital Solutions Limited ("Transferee Company-3") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. Affidavits in support of the above applications have been sworn by Mrs. Seema Baliyan, Director of Transferor Company No.1 and Mr. Moksh Sangwan, Director of the Transferor Company No.2 being and Ms. Megha Sharma, Director of the Transferee Company No.3 the authorized signatory of the Applicant Companies, who have been authorized vide board resolutions dated 20.03.2023 for all the Applicant Companies and have been duly filed, along with the application.

3. The Applicant Company No. 1/Transferor Company –Padamnabh Trading Private Limited bearing Corporate Identification No (CIN): U51101DL2015PTC281031 was incorporated under the provisions of the Companies Act, 2013, as a private limited company vide Certificate of Incorporation dated 03.06.2015, having its registered office at G-21 & G-22, Plot No.3, Ground Floor, Community Center, Aggarwal Plaza, Prashant Vihar, Sec-14 Rohini North West Delhi-110085. The Authorized Share Capital of the Applicant Company No. 1 is Rs. 50,00,000/- (Rupees Fifty Lakhs Only) divided into 5,00,000 (Five Lakhs) equity shares of Rs. 10/- (Rupees Ten) each. The Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 50,00,000/-(Rupees Fifty Lakhs Only) divided into 5,00,000 (Five Lakhs) equity shares of Rs. 10/- (Rupees Ten) each, fully paid-up.

4. The Applicant Company No. 2/Transferor Company – M/s Vardhaman Fabrics Private Limited bearing Corporate Identification No. (CIN): U17214DL2010PTC205219 was incorporated under the provisions of the Companies Act, 1956, as a public limited company vide Certificate of Incorporation dated 05.07.2010, having its registered office at G-21 & G-22, Plot No.3, Ground Floor, Community Center, Aggarwal Plaza, Prashant Vihar, Sec-14 Rohini North West Delhi-110085. The Authorized Share Capital of the Applicant Company No. 2 is Rs. 2,20,00,000/- (Rupees Two Crore Twenty Lakhs Only) divided into 22,00,000 (Twenty-Two Lakhs) equity shares of Rs. 10/- (Rupees Ten) each. The present issued, subscribed and paid-up share capital of the Company is Rs. 2,04,50,000/- (Rupees Two Crore Four Lakhs Fifty Thousand Only) divided into 22,00,000 (Twenty-Two Lakhs) Equity shares of Rs. 10 each.

5. The Applicant Company No. 3/Transferee Company – M/s Shubhram Hospital Solutions Limited Private Limited bearing Corporate Identification

No. (CIN): U28990DL2017PTC319243 was incorporated under the provisions of the Companies Act, 2013, as a public limited company vide Certificate of Incorporation dated 09.06.2014, having its registered office at G-21 & G-22, Plot No.3, Ground Floor, Community Center, Aggarwal Plaza, Prashant Vihar, Sec-14 Rohini North West Delhi-110085. The Authorized Share Capital of the Applicant Company No. 3 is Rs. 37,00,00,000/-(Rupees Thirty-Seven Crore Only) divided into 25,00,000 (Twenty-Five Lakhs) equity shares of Rs. 10/- (Rupees Ten) each. The present issued, subscribed and paid-up share capital of the Company is Rs. 36,22,19,020/- (Rupees Thirty-Six Crore Twenty-Two Lakhs Nineteen Thousand Twenty Only) divided into 3,62,21,902 (Three Crore Sixty-Two Lakhs Twenty-One Thousand Nine Hundred Two) Equity shares of Rs. 10 each.

6. The Transferor Company as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts for the Financial 31.03.2022.

7. The Transferor Company and Transferee Company, vide their respective meeting of the Board of Directors held on 20th March 2023 have unanimously approved the proposed Scheme of Amalgamation.

8. It has been stated that the Transferor Company and the Transferee Company had some 'Statutory and Other dues' which have either been paid in full or being provisional in nature, are not due for payment as on the date of this Application. Certificates from Chartered Accountants confirming same have been enclosed.

9. The Applicant Companies have further placed on record the certificate of statutory auditors regarding conformity of accounting treatment in the scheme in consonance with Section 133 of the Companies Act, 2013.

10. That the management wishes to amalgamate the Transferor Company -1 and Transferor Company-2 with the Transferee Company for following benefits: -

    i) Achieving business and Administrative synergies.
    ii) Consolidation and simplification of the group structure, cost savings resulting from rationalization, standardization and simplification of business processes.
    iii) Improved organizational capability arising from pooling of financial resources.
    iv) Avoiding un-necessary duplication of costs of administration, distribution, selling and marketing and reduction in legal and regulatory compliances.
    v) Maximize the overall shareholders value by strengthening its core competencies.

11. Taking into consideration the submissions and the documents filed therewith, the following directions are issued forthwith in respect of convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices as follows:

I. <u>In relation to the Transferor Company-1: (M/S PADAMNABH TRADING PRIVATE LIMITED)</u>

a) **With respect to Equity shareholders:** In view of consent affidavits from 2 equity shareholders, having 100% of voting share, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** In view of consent affidavits from 2 out of 3 Secured Creditor, having 99.47% of voting share, convening the meeting of Secured Creditor is dispensed with.

c) **With respect to Unsecured Creditors:** In view of consent affidavits from 10 out of 24 Unsecured Creditor, having 95.71% of voting share, convening the meeting of Unsecured Creditor is dispensed with.

II. <u>In relation to the Transferee Company:(M/S VARDHAMAN FABRICS PRIVATE LIMITED)</u>

a) **With respect to Equity shareholders:** In view of consent affidavits from 2 equity shareholders, having 100% voting share, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** In view of consent affidavits from 2 out of 3 Secured Creditor, having 99.97% of voting share, convening the meeting of Secured Creditor is dispensed with.

c) **With respect to Unsecured Creditors:** In view of consent affidavits from 2 Unsecured Creditor, having 100% of voting share, convening the meeting of Unsecured Creditor is dispensed with.

III. <u>In relation to the Transferee Company:(M/S SHUBHRAM HOSPITAL SOLUTIONS PRIVATE LIMITED)</u>

a) **With respect to Equity shareholders:** In view of consent affidavits from 4 equity shareholders, having 99.99% voting share, convening the meeting of shareholders/members is dispensed with.

b) With respect to Secured Creditors: In view of consent affidavits from 2 out of 4 Secured Creditor, having 99.62% of voting share, convening the meeting of Secured Creditor is dispensed with.

c) With respect to Unsecured Creditors: In view of consent affidavits from 18 out of 110 Unsecured Creditor, having 90.45% of voting share, convening the meeting of Unsecured Creditor is dispensed with.

12. Notice of this application shall be served on the following:

i. Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003;

ii. Registrar of Companies at 4th floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;

iii. Official liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-110001;

iv. Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers so that timely and proper reply may be filed.

v. Any other sectoral regulators required to be served.

The application stands allowed on the aforesaid term and accordingly disposed of.

Sd/-

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALRAM DAS)
MEMBER (JUDICIAL)